

This doctrine, of course, does not interfere with the well-known rule, that a testator may, *by his will, refer to and incorporate therein*, any document which at the date of the will has an actual existence, and is thus made part of the will.

4. **Where the devisee is made by the will a trustee, and the testator leaves an informal declaration of trust.**—Should the testator devise the estate in such language that the will passes the *legal* estate only to the devisee, and manifests an intention of not conferring the equitable, in short, *stamps the devisee with the character of trustee*, and yet does not define the particular trusts upon which he is to hold; in this case, no paper not duly attested (except of course papers existing at the date of the will, and incorporated by reference) will be admissible to prove what were the trusts intended (*b*). Nor will the devisee be allowed *to [*60] retain the beneficial interest himself; but while the legal estate passes to him, the equitable will, according to the date and terms of the will, result to the testator's heir-at-law or general residuary devisee (*a*).

5. **Personal estate.**—So if by will, *personal estate* be given upon trusts to be *afterwards* declared, the testator cannot by any instrument not duly executed as a will, and *a fortiori* he cannot by parol, declare a valid trust, but the equitable interest will result to the next of kin, or pass the residuary legatee (*b*). [And the same rule will be applied if the bequest be on the face of the will a beneficial one, but the legatee undertakes to hold upon trusts to be afterwards declared (*c*).]

6. But where personal estate was by codicil given to a legatee "to be applied as I have requested him to do," and

[(*b*) See, however, *Re Fleetwood*, 15 Ch. D. 594.]

(*a*) *Muckleston v. Brown*, 6 Ves. 52; [*Scott v. Brownrigg*, 9 L. R. Ir. 246;] *Bishop v. Talbot*, as cited 6 Ves. 60, was a devise to trustees in trust, but on consulting the Reg. Lib. it appears there was no notice of the trust upon the will, Reg. Lib. 1772, A. Fol. 137. In *Boson v. Statham*, 1

Eden. 508, the devisees were described as trustees, but this circumstance was not adverted to by the counsel or the Court.

(*b*) *Johnson v. Ball*, 5 De G. & Sm. 85; [*Scott v. Brownrigg*, 9 L. R. Ir. 246; see *Riorden v. Banon*, 10 I. R. Eq. 469; *Re Boyes*, 26 Ch. D. 531; *Re Fleetwood*, 15 Ch. D. 594.]

[(*c*) *Re Boyes*, 26 Ch. D. 531.]